

Notes:

- i. **Authorised works** are works that are carried out by or on behalf of a relevant service provider in connection with the installation, inspection, maintenance, repair, testing or removal of that service provider's infrastructure in that road or road related area and that are works which have the consent of the coordinating road authority in accordance with Clause 16(5) of Schedule 7 to the **Road Management Act 2004** or works to which an exception applies in accordance with section 63(2) of that Act.
- ii. A **relevant service provider** means a utility within the meaning of the **Road Management Act 2004** or a provider of public transport within the meaning of that Act. A **utility** includes an entity which provides water, sewerage, drainage, gas, electricity, telephone and telecommunications.

- (8) For the purposes of temporary works on the roads or parts of roads for which they are the responsible road authority, councils and other entities responsible for roads have the power to erect, display, place, remove or alter the following traffic control devices:

- a temporary works speed-limit sign, meaning a temporary speed-limit sign fixing a speed-limit that is lower than, or the same as, the speed-limit which would otherwise apply to the relevant length of road but no lower than 40 km/h;
- a traffic control device, other than a traffic signal, that uses lights or illuminated words or symbols to direct or warn road users.

Councils and other entities responsible for roads have the power to erect, display, place, remove or alter any other minor traffic control devices that apply to traffic on any part of the road for which they are responsible.

For major traffic control devices, they must have the authorisation of the Head, Transport for Victoria.

An authorisation may be in the form of a Memorandum of Authorisation or may be in the form of a delegation.

In addition, councils have additional limited powers relating to arterial roads within their municipal district.

See regulation 11 of the Road Safety (Traffic Management) Regulations 2019.

- (9) A person who has received a permit to conduct non-road activities in accordance with section 99B of the **Road Safety Act 1986** may erect, display, place, remove or alter the following traffic control signs providing they are included in the relevant traffic management plan:

- a hand-held stop sign;
- a temporary works speed-limit sign;
- a traffic control device, other than a traffic signal, that uses lights or illuminated words or symbols to direct or warn road users;
- a works advisory sign.

For any other minor traffic control signs, a person must have authorisation of the coordinating road authority for the road or road related area.

For major traffic control signs, the person must have authorisation of the Head, Transport for Victoria.

See regulation 13 of the Road Safety (Traffic Management) Regulations 2019.

14. Additional duties under the Occupational Health and Safety Act 2004

- (1) The **Occupational Health and Safety Act 2004** imposes duties on an employer, so far as reasonably practicable:
- to provide and maintain for employees a working environment that is safe and without risks to health (see section 21 of the **Occupational Health and Safety Act 2004**); and